

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 21, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 26CV01438

NORES v. WILKERSON, et al.

PLAINTIFF NORES’ MOTION TO APPOINT DEFENDANTS’ SUCCESSOR IN INTEREST

Plaintiff’s motion is denied without prejudice. Plaintiff has not carried her burden to establish that either other defendant (Lin Holliday or Roderick Wilkerson) is a beneficiary of or heir to the decedent’s estate and is properly a successor in interest, as required by Code of Civil Procedure sections 377.40 and 377.41. To the extent plaintiff intends to re-notice this motion, it shall not be set prior to defendants’ pending demurrers and motions to strike (set on November 16, 2026).

No. 25CV00933

ETHEM v. LEFF

OPPOSITION TO CLAIM OF EXEMPTION

Parties are to appear and be prepared to provide all information related to the debt and the defendant’s financial condition to the court.

The court grants defendant’s requests for judicial notice of Exhibits 1 through 11.

LAW AND MOTION TENTATIVE RULINGS
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No. 25CV03379

PORTER et al. v. PAJARO VALLEY HEALTHCARE DISTRICT HOSPITAL CORP.

DEFENDANT’S DEMURRER

The demurrer is overruled. Defendant is ordered to file an answer no later than October 23, 2026.

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters; therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (*Hahn, supra*, 147 Cal.App.4th at p. 747.)

Plaintiffs are patients of defendant hospital medical group and their personally identifiable information (“PII”) and personal health information (“PHI”) were obtained by the ransomware group Termite in a November 2024 cyberattack and leaked until July 2025; a second group, Sinobi, took 13 gigabytes in August 2025 and leaked that as well. (Consolidated Amended Complaint (“CAC”) ¶¶ 18-21.) Defendant never publicly acknowledged the second breach, and it waited until October 15, 2025 to tell patients that their PII and PHI were in the stolen files. (CAC ¶¶ 5, 21, 55, 62.) Plaintiffs include four patients – Sarinah Porter, Karen Barton, Jessica Chipres, and Phil Reader, and they seek to represent other potential plaintiffs in a class. (CAC ¶¶ 98-105.) Plaintiffs allege ten causes of action for negligence, violation of the California Confidentiality of Medical Information Act, violation of the California Consumer Records Act, unfair competition, breach of contract, breach of implied contract, unjust enrichment, breach of fiduciary duty, breach of confidence and violation of the California Consumer Privacy Act.

Plaintiffs plead actual harm – economic and non-economic -- as a result of these breaches: Plaintiff Porter applied for credit and was told her Social Security number was invalid, two fraudulent credit card purchases were made, and her spam calls and emails increased. (CAC ¶¶ 53-56.) Plaintiff Barton received fraudulent invoices from providers she had never treated with and learned her PII and PHI was on the dark web, which she traces to the breach because it